SUPREME COURT OF INDIA

APPELLATE JURISDICTION · THREE-JUDGE BENCH

Writ Petition (Civil) No. 1081 of 2020

CNR: SCIN010010812020

Date: 11 May, 2020

Citation: (2020) 5 SCC 746

CORAM: Hon'ble N.V. Ramana, R. Subhash Reddy, B.R. Gavai, JJ.

Petitioner: Foundation for Media Professionals

- VERSUS -

Respondent: UT of Jammu and Kashmir & Union of India

DOMAIN: TELECOMMUNICATIONS LAW & HEALTH RIGHTS DURING PANDEMIC

STATUS: Good Law (Binding 3-Judge Precedent)

JUDICIAL RATIO DECIDENDI & OPERATIVE HOLDING:

While national security is paramount, access to healthcare and education during a global pandemic requires a calibrated, periodic review of telecommunications restrictions rather than blanket indefinite throttles.

STATUTES APPLIED: Article 19(1)(a), Article 21

DISPOSITION: SPECIAL REVIEW COMMITTEE CONSTITUTED

EXECUTIVE RATIO SUMMARY:

Three-judge bench directed the constitution of a Special Committee headed by Union Home Secretary to urgently examine restoration of 4G mobile internet in J&K, balancing national security against public healthcare and online education.

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